

SENATE BILL 189

By Lamar

AN ACT to amend Tennessee Code Annotated, Title 10, Chapter 7 and Title 49, relative to incentives for students who obtain testing for certain health conditions.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 7, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Eligible student" means a student who is enrolled full-time in undergraduate studies at a public institution of higher education in this state;

(2) "Enrolling institution" means a public institution of higher education in this state in which an eligible student is enrolled;

(3) "Sexually transmitted disease (STD)" has the same meaning as in § 68-10-101; and

(4) "THEC" means the Tennessee higher education commission.

(b) The Tennessee higher education commission shall implement a program to award grants to eligible students who voluntarily provide their enrolling institution with proof of voluntarily receiving testing for STDs. In order to implement this program, THEC shall:

(1) Develop a grant application process that includes a form of proof of testing for STDs, which complies with the federal Health Insurance Portability and Accountability Act of 1996 (HIPAA) (42 U.S.C. § 1320d et seq.) and other

federal and state confidentiality laws, that an eligible student must provide to their enrolling institution as part of a grant application;

(2) Limit the number of grants that an eligible student may receive under this section to one (1) per academic year for up to four (4) academic years;

(3) Notify each student who is enrolled in a public institution of higher education in this state of the grant program and the requirements to apply for and receive a grant;

(4) Ensure that public institutions of higher education in this state accept grant applications from their students, verify an applicant's enrollment status as a full-time undergraduate student, and report to THEC the number of eligible students to whom grants are awarded;

(5) Remit grant funds to public institutions of higher education for distribution to each eligible student who is awarded a grant; and

(6) Ensure that grant funds are expended in the manner required by subsection (d).

(c) Subject to funding, the amount of a grant awarded pursuant to this section is two hundred fifty dollars (\$250).

(d) All grant funds must be expended for tuition, mandatory fees, textbooks, and course materials associated with the grant recipient's undergraduate studies at their enrolling institution.

(e) The grant program established pursuant to this section is funded through the student STD testing grant fund, which is established as a separate account in the general fund. Subject to the availability of revenue at the end of each fiscal year, the commissioner of finance and administration is authorized to carry forward any amounts remaining in the student STD testing grant fund. Moneys in the student STD testing

grant fund must be invested by the state treasurer pursuant to title 9, chapter 4, part 6, for the sole benefit of the student STD testing grant fund. The student STD testing grant fund is subject to appropriations by the general assembly and gifts, grants, and other donations received by THEC for the purpose of supporting the grant program established pursuant to subsection (b).

(f) THEC may promulgate rules to effectuate the purposes of this section in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 2. This act is not an appropriation of funds, and funds must not be obligated or expended pursuant to this act unless the funds are specifically appropriated by the general appropriations act.

SECTION 3. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2026, and applies to grants awarded for the 2026-2027 academic year and each year thereafter, the public welfare requiring it.